

25TRCV03911 25TRCV03911

County: los-angeles

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Case Number: 25TRCV03911 Hearing Date: September 2, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ARDALAN OOSHANI

;

Plaintiff,

vs.

AMIN SHAD

;

Defendant.

Case

No.:

25TRCV03911

Hearing

Date:

September
2, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF AND CROSS-DEFENDANT, ARDALAN OOSHANI'S
MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE

MOVING PARTY: Plaintiff and Cross-Defendant,
Ardalan Ooshani

RESPONDING

PARTY: Defendant and
Cross-Complainant, Amin Shad

(1)

Plaintiff

and Cross-Defendant Ardalán Ooshani's Motion to Compel Further Responses to
Requests for Admission, Set One, is DENIED pursuant to Code of Civil Procedure
section 2033.290, subdivision (b)(1).

The Court considers the moving
papers filed on August 6, 2026, the opposition brief filed on August 20, 2026, and
the reply brief filed on August 27, 2026.

BACKGROUND

Factual Background

On November 18, 2025,
plaintiff Ardalán Ooshani filed the Verified Complaint ("Complaint") against
defendants Amin Shad and DOES 1 through 5.

On December 29, 2025, Shad filed a Cross-Complaint against Ooshani. The Cross-Complaint includes the following causes of action: (1) Breach of Fiduciary Duty; (2) Breach of Contract (Operating Agreement and Related Obligations); (3) Conversion; (4) Violation of Penal Code § 502 (Computer Data Access and Fraud Act); (5) Intentional Interference with Prospective Economic Advantage; (6) Unfair Competition (Bus. & Prof. Code § 17200 et seq.); (7) Declaratory Relief; (8) Injunctive Relief; and (9) Financial Obligations and Damages.

On May 25, 2026, Ooshani served Shad with Requests for Admission, Set One. (Declaration of Ardalan Ooshani ("Ooshani Decl."), ¶ 2, Exh. 1.)

On May 28, 2026, Shad emailed Ooshani, contending that "a number of the requests were excessive, premature, disproportionate, compound, argumentative, or based on disputed materials." (Declaration of Amin Shad ("Shad Decl."), ¶ 3.) Shad requested that Ooshani either withdraw or narrow the scope of these requests. (Shad Decl., ¶ 3.)

In response, on June 16, 2026, Ooshani responded, explaining that "the stated objections lacked merit" and "asked [Shad] to identify, by number and with the specific basis for each, any request he contended was improper, no later than June 20, 2026." (Ooshani Decl., ¶ 7.) Shad did not respond. (Ooshani Decl., ¶ 7.)

On June 23, 2026, Shad confirmed that he would be providing verified responses. (Ooshani Decl., ¶ 7.) On the same day, Ooshani extended an offer to discuss the requests through either telephone or videoconference; however, Shad did not provide a response. (Ooshani Decl., ¶ 8.) Subsequently, on June 24, 2026, Shad served his verified responses. (Ooshani Decl., ¶ 3, Exh. 2.)

On July 1, 2026, Ooshani emailed Shad a meet-and-confer letter to address the alleged deficiencies in Shad's responses. (Ooshani Decl., ¶ 9, Exh. 3.) However, the letter did not identify all of the specific responses that Ooshani contested. (Ooshani Decl., ¶ 9, Exh. 3.) Furthermore, Ooshani requested that amended

responses be provided by July 8, 2026, and proposed a telephone or video conference on July 6, 2026, from 3:00 to 5:00 p.m. to facilitate discussion. (Ooshani Decl., ¶ 9, Exh. 3.)

On July 6, 2026, at 2:25 p.m., Shad requested a chart that identified: “(1) the RFA number; (2) the exact further response you contend is required; and (3) the specific legal basis for that requested further response.” (Ooshani Decl., ¶ 10, Exh. 4.) Shad indicated that he would agree to a brief meet-and-confer call, restricted to the identified Requests for Admission, only upon receiving this chart. (Ooshani Decl., ¶ 10, Exh. 4.)

Later that day, at 2:49 p.m., Ooshani replied, stating, “Without conceding that your responses were proper, that your broad objections were adequately stated, or that a chart is required of me, and in the interest of good faith, I will identify the specific responses at issue and the basis for each, and I will send that identification to you. This does not extend or alter any deadline. All deadlines previously stated in my correspondence remain in place, and the statutory deadline to move to compel further responses is not extended by the meet-and-confer process.” (Ooshani Decl., ¶ 10, Exh. 4.) Ooshani also mentioned that “I will be available to meet and confer at the time I previously proposed today, and remain available to confer by telephone or video. If the issues are not resolved in sufficient time before the deadline, I will proceed with a motion to compel further responses under Code of Civil Procedure section 2033.290 as to the responses I have identified.” (Ooshani Decl., ¶ 10, Exh. 4.)

At 3:07 p.m., Shad confirmed that he was awaiting the requested chart. (Ooshani Decl., ¶ 10, Exh. 4.)

Subsequently, at 8:00 p.m., Ooshani sent the chart and communicated that he “remain[ed] available and willing to meet and confer in good faith regarding the identified responses.” (Ooshani Decl., ¶ 11, Exh. 5.) However, Shad did not respond or provide supplemental responses, and Ooshani chose not to follow up or arrange a time to meet and confer. (Ooshani Decl., ¶ 12; Shad Decl., ¶ 5.)

On August 11, 2026, Ooshani filed the First Amended Complaint ("FAC") against defendants Shad, LPWAN Holding Inc., ELLENEX Holdings PTY Ltd., and DOES 1 through 20. The FAC includes the following causes of action: (1) Declaratory Relief; (2) Breach of Fiduciary Relief; (3) Breach of Operating Agreement; (4) Breach of Exclusive Distribution Agreement; (5) Accounting; (6) Conversion; (7) Intentional Interference with Prospective Economic Advantage; (8) Unjust Enrichment/Restitution; (9) Constructive Trust; (10) Aiding and Abetting Breach of Fiduciary Duty/Receipt of Misappropriated Assets; (11) Constructive Fraud; and (12) Intentional Interference with Contractual Relations.

REQUEST FOR JUDICIAL NOTICE

Filed concurrently with his moving papers, Ooshani has filed a Request for Judicial Notice ("RJN"), requesting this Court take judicial notice of:

1.

Manager's Resolution: Removal of Managerial Authority and Continuation of Operations, filed November 18, 2025, Exh. G;

2. Formal

Notice of Breach and Protection of Company Interests, filed November 18, 2025, Exh. H; and

3.

Declaration of Amin Shad in Support of Defendant's Brief in Opposition to Preliminary Injunction, filed on December 17, 2025, Exh. DDD.

The Court GRANTS this request. The Court takes judicial notice of these documents as "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States[.]" in accordance with Evidence Code section 452, subdivision (d). However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See L.B. Research & Education Foundation v. UCLA Foundation (2005) 130 Cal.App.4th 171, 180, fn. 2, citing Comings v. State Bd. of Education (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

California law requires a responding party to respond to each propounded request for admission with either a substantive answer or an objection to the particular request.

(Code Civ. Proc., § 2033.210, subd. (b).) Each substantive answer must: “(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; (2) Deny so much of the matter involved in the request as is untrue; [or] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

Code of Civil Procedure section 2033.290, subdivision (a), provides that “[o]n receipt of responses to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete[; and] (2) An objection to a particular request is without merit or too general.”

(Code Civ. Proc., § 2033.290, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc., § 2033.290, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2033.290, subd. (b)(1).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the

imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery. (h) Making or opposing, unsuccessfully and

without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Ooshani must

meet and confer with Shad before bringing this motion. (Code Civ. Proc., § 2033.290, subd. (b)(1).) Code of Civil Procedure section 2016.040

states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., §

2016.040.) “ ‘The parties must present

to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the

cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available

information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102

Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998)
61 Cal.App.4th 1431, 1435.)

On July 1, 2026, Ooshani
emailed Shad a meet-and-confer letter to address the alleged deficiencies in
Shad's responses. (Ooshani Decl., ¶ 9,
Exh. 3.) However, the letter did not
identify all of the specific responses that Ooshani contested. (Ooshani Decl., ¶ 9, Exh. 3.) Furthermore, Ooshani requested
that amended
responses be provided by July 8, 2026, and proposed a telephone or video
conference on July 6, 2026, from 3:00 to 5:00 p.m. to facilitate discussion. (Ooshani Decl., ¶ 9, Exh. 3.)

On July 6, 2026, at 2:25 p.m.,
Shad requested a chart that identified: "(1) the RFA number; (2) the exact
further response you contend is required; and (3) the specific legal basis for
that requested further response." (Ooshani
Decl., ¶ 10, Exh. 4.) Shad indicated
that he would agree to a brief meet-and-confer call, restricted to the
identified Requests for Admission, only upon receiving this chart. (Ooshani Decl., ¶ 10, Exh. 4.)

Later that day, at 2:49 p.m.,
Ooshani replied, stating, "Without conceding that your responses were proper,
that your broad objections were adequately stated, or that a chart is required
of me, and in the interest of good faith, I will identify the specific
responses at issue and the basis for each, and I will send that identification to
you. This does not extend or alter any
deadline. All deadlines previously
stated in my correspondence remain in place, and the statutory deadline to move
to compel further responses is not extended by the meet-and-confer process." (Ooshani Decl., ¶ 10, Exh. 4.) Ooshani also
mentioned that "I will be
available to meet and confer at the time I previously proposed today, and
remain available to confer by telephone or video. If the issues are not resolved in sufficient
time before the deadline, I will proceed with a motion to compel further
responses under Code of Civil Procedure section 2033.290 as to the responses I
have identified." (Ooshani Decl., ¶ 10,
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At 3:07 p.m., Shad confirmed
that he was awaiting the requested chart.
(Ooshani Decl., ¶ 10, Exh. 4.)

Subsequently, at 8:00 p.m.,

Ooshani sent the chart and communicated that he “remain[ed] available and willing to meet and confer in good faith regarding the identified responses.” (Ooshani Decl., ¶ 11, Exh. 5.) However, Shad did not respond or provide supplemental responses, and Ooshani chose not to follow up or arrange a time to meet and confer. (Ooshani Decl., ¶ 12; Shad Decl., ¶ 5.)

The Court finds that Ooshani did not adequately meet and confer in accordance with Code of Civil Procedure section 2016.040. Ooshani failed to meet in person, by telephone, or via video conference to discuss the issues at hand. Rather, Ooshani opted to send two meet-and-confer letters and did not take any follow-up actions or arrange a meeting after issuing a letter on July 6, 2026. (Ooshani Decl., ¶¶ 11, Exh. 5; Shad Decl., ¶ 5.) Notably, the July 6, 2026, meet-and-confer letter was the first instance where Ooshani outlined all the alleged deficiencies in Shad’s responses.

Furthermore, Ooshani did not contact Shad to resume their discussion, even though there was more than a month available to initiate communication before filing this motion. Consequently, the Court does not consider this a sufficient attempt to meet and confer prior to bringing this motion. Ooshani is responsible for discussing the alleged deficiencies in each individual request with Shad.

Accordingly, the Court DENIES Ooshani’s motion to compel further responses.

ORDERS

1) Plaintiff
and Cross-Defendant Ardalan Ooshani’s Motion to Compel Further Responses to Requests for Admission, Set One, is DENIED.

2) Ooshani
is ordered to give notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: September 2, 2026

Tamara
Hall

Judge
of the Superior Court